



Vendor Authorization- Minimum Stocking

Policy: The Colorado WIC Vendor Agreement requires authorized grocery and commissary stores to comply with minimum stocking requirements. Farmers and pharmacy vendors are exempt. Multiple findings regarding the failure to meet minimum stocking requirements will result in further action, up to disqualification.

Regulation: 7 CFR 246.12

Procedure/Additional Guidance:

Required Stock

Authorized grocery and commissary stores are required to maintain a stock of a minimum variety and number of basic WIC foods, such as cheeses, cereals, juices, whole grains, milk and required contract brand infant formulas. (Detailed in the Vendor Handbook, Section III.) If a store does not maintain the items minimally required and needed by participants, the Local Agency Retailer Coordinator (LARC) should document the problem, try to resolve the problem with the store manager and notify the Benefit Delivery Unit (BDU) as appropriate, sending the documentation.

Staff documentation and/or participant complaints of vendors failing to meet minimum stocking requirements necessitate staff follow-up. Written documentation, stating name and location of store, item(s) not in stock, and date and time participant was in the store is needed. LARC should contact the store to determine when the food will be available. LARC should track communications with the vendor as appropriate in the Compass Vendor Log screen. LARC staff should follow-up with the store to ensure *Minimum Stocking Requirements* are met within two weeks. Follow up may include: an informal site visit, formal monitoring visit, conversation with store management, shelf survey, etc.

If the problem continues, the State WIC Program must be notified. Multiple complaints regarding the failure to meet minimum stocking requirements will result in further action. The State WIC Program may request a formal shelf survey be conducted and/or send a written notice of the violation in accordance with the sanctions outlined in the *Handbook*. The store should not receive any information regarding the identity of the WIC participant.

For updated minimum stocking requirements, please see the Vendor Handbook.

Non-Required Stock

Stores are not required to maintain stock of each flavor and variety of the allowed WIC options (e.g., Honey Kix, Adams crunchy peanut butter). Occasionally a vendor will not stock a particular flavor or variety. In these cases, a WIC shopper has several choices: (1) purchase a different flavor or type of WIC-authorized product, for example Crispix instead of Total cereal, (2) purchase the items available and return when the store has sufficient stock of the items (3) go to another Colorado WIC-authorized store. A WIC shopper using an eWIC card has the opportunity to purchase the items available and return to the same or a different authorized store for the duration of time the benefits are available.

If a store is low on items that are not required, such as a formula like Neocate or Lactaid milk, then the Educator, LARC, and/or participant can work with the store to see about ordering the items (or ordering non-standard formula through the pharmacy process). The store has the option to carry non-required items or not.